

Court No. - 35

Case :- WRIT - C No. - 17194 of 2018

Petitioner :- Malti Devi

Respondent :- Dakshinanchal Vidhut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Sanjeev Kumar Pandey, Vishwa Deepak Mishra

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Bharati Sapru, J.

Hon'ble Saral Srivastava, J.

Heard Shri S.K. Pandey, learned counsel for the petitioner and Shri S.K. Tripathi, learned counsel for the respondent no.3.

The petitioner has prayed for a writ of mandamus directing the respondents to set aside the checking report dated 30.10.2017. The petitioner has approached this Court without taking recourse to the remedy available to him under the U.P. Electricity Supply Code, 2005 itself.

Clause 6.8 of the U.P. Electricity Supply Code, 2005 provides for filing of an objection by the petitioner against any order of assessment made by the Inspector, checking on premises on allegation of unauthorised use of electricity.

This is precisely what has happened in the present case. The allegation is of unauthorised use of electricity.

It open to the petitioner to take recourse to the provision of Clause 6.8 of the U.P. Electricity Supply Code, 2005. He may file his objection within next three days. In case, the petitioner files his objection, the same may be heard and disposed of in accordance with law.

The writ petition is accordingly disposed of.

Order Date :- 14.5.2018

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